

The M.P. Govansh Vadh Pratishedh Rules, 2004

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State of Madhya Pradesh - Act

The M.P. Govansh Vadh Pratishedh Rules, 2004

MADHYA PRADESH

India

The M.P. Govansh Vadh Pratishedh Rules, 2004

Rule THE-M-P-GOVANSH-VADH-PRATISHEDH-RULES-2004 of 2004

Published on 13 July 2004

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The M.P. Govansh Vadh Pratishedh Rules, 2004

Published vide Notification No. F-23-51-04-35 dated the 13th July, 2004, in M.P. Rajpatra (Asadharan), dated 13-7-2004 at page 584

Notification No. F-23-51-04-XXXV dated the 13th July, 2004. - In exercise of the powers conferred by Section 17 read with Section 12 of the Madhya Pradesh Govansh Vadh Pratishedh Adhiniyam, 2004 (No. 6 of 2004), the State Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These Rules may be called the Madhya Pradesh Govansh Vadh Pratishedh Rules, 2004.

(2)

They shall come into force from the date of their publication in the "Madhya Pradesh Gazette".

2.

Definitions.

- In these rules, unless the context otherwise requires :

(a)

"Act" means the Madhya Pradesh Govansh Vadh Pratishedh Adhiniyam, 2004 (No. 6 of 2004);

(b)

"Local officer" means the Joint Director/Deputy Director of Veterinary Services of the Government of Madhya Pradesh posted at district level;

(c)

all other words and expressions used herein and not defined shall have the meaning respectively assigned to them by the Act.

3.

Permit for transportation of cow progeny within the State.

(1)

Any person, who desires to transport cow progeny within the State by any vehicle shall apply for a permit in Form 1 to the Sub-Divisional Officer (Revenue) after depositing a fee of Rs. 25/- per trip.

(2)

The provisions relating to the Prevention of Cruelty to Animals Act, 1960 (No. 59 of 1960) and other related Acts and rules shall be mentioned by the Sub-Divisional Officer on the back of the permit and compliance of the same shall be mandatory for the permit holder.

(3)

The Sub-Divisional Officer (Revenue) may conduct such enquiry, as he may deem necessary for his satisfaction, for verification of details given in the application in Form 1. After conducting such enquiry, if the Sub-Divisional Officer is satisfied, he shall issue the permit in Form 2 to the applicant within a period of two weeks from the date of receiving the application or reject the application by passing an order stating the reasons thereof, and shall enter related informations in his official register under his own hand writing.

4.

Aid and grant to institution.

(1)

Institutions having a minimum of one hundred of unproductive infirm, aged and diseased cow progeny, shall get aid under various schemes of State Government/Government of India.

(2)

Institutions mentioned in sub-rule (1) shall also get grant from marketing committee under clause (iv) of sub-section (3) of Section 17 of the Madhya Pradesh Krishi Upaj Mandi Adhiniyam, 1972 (No. 24 of 1973).

5.

Handing over of impounded cow progeny.

- Wandering cow progeny, which are captured by employees of cattle-pound and are not released or auctioned shall be handed over to the institution by the local authority.

6.

Levy of charges.

(1)

The institution may levy and recover charges for care and maintenance of cow progeny from their owners, which shall be equivalent to the charges levied by the cattle-pound of the local body.

(2)

The cattle-pound, which are maintained by local bodies, may discharge the functions of institutions to the extent possible.

7.

Economic rehabilitation scheme.

(1)

The competent authority of the Municipal Corporations, Municipalities and Nagar Panchayats shall prepare a list in Form

3 of persons, who are partially or fully affected by the provisions of the Act and display it on the notice board in their office for inviting objections. The objections, if any received, shall be disposed off by such competent authority, thereafter a final list of affected persons shall be prepared and the affected person shall be informed.

(2)

The competent authority of local body shall send the final list to the Collector of the district.

(3)

After receiving the final list from local body, the collector of the district shall get it scrutinised and after certification on prescribed Form 4, he shall recommend for various self employment schemes of concerned corporations and/or Boards of the State Government on the basis of affected persons demand, and a copy of that list shall be endorsed to the local officer for co-ordination.

(4)

Such Corporations and Boards after completing necessary formalities shall make funds available to the affected persons either directly or through banks.

(5)

Monthly monitoring of economic rehabilitation of the affected persons shall be done by the Collector, for which the local officer shall act as co-ordinator.

(6)

The affected persons shall get benefit of this economic rehabilitation only once, after coming into force of the Act.

Form 1

[See Rule 3(1)]

Application for permit to transport cow progeny within the State

To,

The Sub-Divisional Officer (Revenue)

District.....

I, desire to transport the cow/calves of cow/bull/bullocks within the State. Please grant necessary permit under rule 3 (1) of the Madhya Pradesh Govansh Vadh Pratishedh Rules, 2004. My particulars are as given below :-

1. Name.....
2. Father's Name.....
3. Age.....
4. Sex.....
5. Caste.....
6. Profession.....
7. Present Address, Tel No.....

8.

Permanent Address, Tel No.....

9.

Number of cows/calves of cow/bull/bullocks.....

Enclosed : Receipt of Rs. 25/-

Place :

Date :

.....Signature of the Applicant.

Form 2

[See Rule 3 (3)]

Permit

Registration No.....

Date.....

Photograph attested by Authorised Officer

1. Name.....
2. Father's Name.....
3. Age.....
4. Sex.....

5. Caste.....

6. Profession.....

7. Present Address, Tel No.....

8. Permanent Address, Tel No.....

Certified that under Rule 3 (3) of the Madhya Pradesh Govansh Vadh Pratishedh Rules, 2004 the character of (Name)..... S/o..... has been verified and was found suitable for transportation of..... number of cow/calves of cow/bull/bullock within the State.

This permission will remain valid till.... (date)

Place :

Date :

.....

Sub-Divisional Officer

(Name and Stamp of Designation)

Form 3

[See Rule 7(1)]

Office of the Municipal Corporation/Municipality/Nagar Panchayat.....

List of the affected persons under sub-rule (1) of rule 7 of the Madhya Pradesh Govansh Vadh Pratishedh Rules, 2004.

List of Affected Persons

Sl. No.

Name of affected persons

Father's Name

Caste

Address

Licence Number

(1)

(2)

(3)

(4)

(5)

(6)

No. of animals slaughtered in last three years

Extent of the persons being affected

Remarks

Cow

Buffalo

Small animal

Partial

Complete

(7)

(8)

(9)

(10)

(11)

(12)

Certified that the above mentioned information is true and as per record available in the office.

Signature

Competent Authority of Municipal Corporation/

Municipality/Nagar Panchayat.

Form 4

[See Rule 7 (3)]

Office of the Collector, District.....(M.P.)

No.....

Dated.....

To,

The Commissioner-cum-Director Veterinary
Services, Madhya Pradesh, Bhopal.

Sub. - Submission of list of affected persons under rule 7 (3) of the Madhya Pradesh Govansh Vadh Pratishedh Rules, 2004.

After receiving the list of affected persons from the competent authority of Municipal Corporation/Municipality/Nagar Panchayat, it has been duly scrutinised by this office, Details are as follows :-

Sl. No.

Name of affected persons

Father's Name

Caste

Address

Licence Number

Extent of the person being affected

Recommendation for self employment scheme of
Corporation/ Board of State Government

Partial

Complete

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Certified that the above mentioned information is true and as per records.

Signature

Collector.....(M.P.)

Copy forwarded to :-

(1)

Deputy Director/Joint Director, District.....Veterinary Services, Government of Madhya Pradesh for co-ordination.

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